

COMMITTEE ON HEALTH AND HUMAN SERVICES
SENATE AMENDMENTS TO H.B. 2307
(Reference to House engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[~~GREEN STRIKEOUT IN BRACKETS~~] indicates new text removed from statute or previously enacted session law.

[~~Green strikeout in brackets~~] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<~~Green strikeout in carets~~>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 13-4521, Arizona Revised Statutes, is amended to
3 read:

4 13-4521. Dangerous and incompetent defendants; proof evident
5 hearing; commitment trial; disposition; findings;
6 annual report

7 A. If a court enters an order pursuant to section 13-4517,
8 subsection A, paragraph 4, the court shall hold a hearing within ten days
9 after the order is issued to determine if the proof is evident or the
10 presumption great that the defendant committed the act that constitutes a
11 serious offense as defined in section 13-706. If the court does not find
12 the proof is evident or the presumption great that the defendant committed
13 the act, the court shall proceed pursuant to section 13-4517, subsection
14 A, paragraph 1, 2 or 3.

15 B. If the court does find the proof is evident or the presumption
16 great pursuant to subsection A of this section, the court shall hold a
17 trial within one hundred twenty days after the court issued the order
18 pursuant to section 13-4517, subsection A, paragraph 4 to determine if the
19 defendant is dangerous and should be involuntarily committed. Unless the
20 state or defendant requests a jury trial, a trial held pursuant to this
21 subsection shall be before the court.

22 C. The Arizona rules of evidence and the Arizona rules of civil
23 procedure apply to proceedings held pursuant to this section, except that
24 the court may consider evidence that is not admissible under the Arizona
25 rules of evidence when making a determination pursuant to subsection A of
26 this section.

1 D. If there has not been a previous evaluation to determine whether
2 the defendant is dangerous, the defendant shall be examined by mental
3 health experts in accordance with the requirements of section 13-4509,
4 subsection D to determine if the defendant should be considered dangerous.
5 The state and the defendant may each retain a mental health expert to
6 examine the defendant and present the defendant's mental health evaluation
7 at the trial.

8 E. At a trial to determine if the defendant is dangerous, the state
9 shall establish beyond a reasonable doubt that the defendant is dangerous
10 and should be involuntarily committed. If the factfinder does not find
11 that the defendant is dangerous or does not find that the defendant should
12 be involuntarily committed, the court shall proceed pursuant to section
13 13-4517, subsection A, paragraph 1, 2 or 3.

14 F. If the factfinder finds that the defendant is dangerous and
15 should be involuntarily committed, the court shall dismiss the charges
16 against the defendant without prejudice and order the defendant to be
17 committed to a secure state mental health facility. The defendant shall
18 receive education, care, supervision and treatment to render the defendant
19 either competent or nondangerous.

20 G. If the court issues [OR HAS ISSUED] a commitment order pursuant
21 to this section:

22 1. [UNTIL DECEMBER 31, 2031.] IF THE DEFENDANT HAS BEEN DETERMINED
23 TO BE DANGEROUS AND INCOMPETENT AND IS INVOLUNTARILY COMMITTED TO A SECURE
24 STATE MENTAL HEALTH FACILITY PURSUANT TO THIS SECTION BUT THERE ARE NO
25 BEDS AVAILABLE IN A SECURE STATE MENTAL HEALTH FACILITY IN THIS STATE,
26 [THE DEPARTMENT OF HEALTH SERVICES SHALL CONTRACT WITH A SECURE MENTAL
27 HEALTH FACILITY OUTSIDE OF THIS STATE OR A FACILITY THAT IS ABLE TO
28 PROVIDE EQUIVALENT SERVICES OUTSIDE OF THIS STATE TO PROVIDE SERVICES TO
29 THE DEFENDANT AS REQUIRED BY THIS SECTION AND TO ABIDE BY THE REQUIREMENTS
30 PRESCRIBED IN TITLE 36, CHAPTER 40. THE DEPARTMENT OF HEALTH SERVICES IS
31 RESPONSIBLE FOR ALL CONTRACTUAL COSTS ASSOCIATED WITH OUT-OF-STATE
32 PLACEMENT AND SERVICES FOR A DEFENDANT PURSUANT TO THIS SUBSECTION]
33 [SECTION 13-4521.01 APPLIES TO THE PLACEMENT OF THE DEFENDANT, BUT ALL
34 OTHER PROVISIONS OF THIS SECTION REMAIN APPLICABLE TO THE DEFENDANT].

35 ~~1.~~ 2. All further proceedings for the defendant's continued
36 treatment and the circumstances under which the defendant may be released
37 shall be conducted pursuant to title 36, chapter 40.

38 ~~2.~~ 3. The order shall require that the defendant remain committed
39 to a secure state mental health facility until any of the following
40 occurs:

- 41 (a) The court finds that the defendant is competent to stand trial.
- 42 (b) The court finds that the defendant is no longer dangerous.

43 H. A commitment order issued pursuant to this section may not be in
44 effect for more than the presumptive sentence the defendant could have
45 received for the highest charged offense pursuant to section 13-702 or

1 13-703, section 13-704, subsection A, B, C, D or E, section 13-705,
2 section 13-706, subsection A, section 13-708, subsection D or section
3 13-751 or any section for which a specific sentence is authorized. In
4 making this determination, the court may not consider the sentence
5 enhancements under section 13-703 or 13-704 for prior convictions. The
6 court shall consider all time a defendant has been in custody, including
7 pretrial detention and custody under title 36.

8 I. The court shall retain jurisdiction over a defendant who is
9 committed pursuant to this section until the court discharges the
10 defendant from treatment. If a defendant is discharged or released on the
11 expiration of a commitment order issued pursuant to this section, the
12 medical director of the secure state mental health facility from which the
13 defendant is discharged or released or the state may file a petition
14 stating that the defendant requires further treatment pursuant to title
15 36, chapter 5 or the appointment of a guardian pursuant to title 14.

16 J. Findings by the court made pursuant to this section and, except
17 as provided in section 13-4508, any statements made by the defendant
18 during an examination by a mental health expert pursuant to section
19 13-4509 are inadmissible in any proceeding other than a proceeding under
20 title 36, chapters 5 and 40.

21 K. A person who is involuntarily committed to a secure state mental
22 health facility pursuant to this section shall receive credit for all time
23 spent under the jurisdiction of the secure state mental health facility if
24 the person is found competent to stand trial and is subsequently sentenced
25 to the state department of corrections for any of the charges that were
26 the basis for the involuntary commitment.

27 L. The court shall annually report the following information for
28 the previous year to the Arizona criminal justice commission:

29 1. The number of court orders for a trial pursuant to section
30 13-4517, subsection A, paragraph 4, including the number of jury trials
31 that were held.

32 2. The number of defendants who are committed after a trial
33 pursuant to this section.

34 3. The number of committed defendants who are conditionally
35 released to a less restrictive alternative.

36 4. The number of committed defendants who are restored to
37 competency or determined to not be dangerous and who are discharged.

38 <<Sec. 2. Title 13, chapter 41, Arizona Revised Statutes, is
39 amended by adding section 13-4521.01, to read:

40 13-4521.01. Dangerous and incompetent defendants; placement
41 until December 31, 2031; reports

42 [A. UNTIL DECEMBER 31, 2031, IF THE COURT ISSUES OR HAS ISSUED A
43 COMMITMENT ORDER PURSUANT TO SECTION 13-4521 AND THERE ARE NO BEDS
44 AVAILABLE IN A SECURE STATE MENTAL HEALTH FACILITY IN THIS STATE, THE

1 ARIZONA STATE HOSPITAL MAY ACCEPT THE DEFENDANT FOR CARE AND TREATMENT ON
2 ITS FORENSIC CAMPUS IF ALL OF THE FOLLOWING APPLY:

3 1. THE DEFENDANT HAS BEEN DETERMINED TO BE DANGEROUS AND
4 INCOMPETENT AND IS INVOLUNTARILY COMMITTED TO A SECURE STATE MENTAL HEALTH
5 FACILITY PURSUANT TO SECTION 13-4521.

6 2. THE DEFENDANT HAS RECEIVED AT LEAST TWELVE MONTHS OF RESTORATION
7 TO COMPETENCY SERVICES.

8 3. THE DEFENDANT HAS A PRIMARY PSYCHIATRIC CONDITION.

9 B. THE ORDER SHALL:

10 1. REQUIRE THAT THE DEFENDANT REMAIN COMMITTED TO THE ARIZONA STATE
11 HOSPITAL PURSUANT TO THIS SECTION OR A SECURE STATE MENTAL HEALTH FACILITY
12 UNTIL EITHER OF THE FOLLOWING OCCURS:

13 (a) THE COURT FINDS THAT THE DEFENDANT IS COMPETENT TO STAND TRIAL.

14 (b) THE COURT FINDS THAT THE DEFENDANT IS NO LONGER DANGEROUS.

15 2. INCLUDE AUTHORIZATION FOR THE ARIZONA STATE HOSPITAL TO PROVIDE
16 NECESSARY TREATMENT TO THE DEFENDANT, INCLUDING THE ADMINISTRATION OF
17 MEDICATIONS AS CLINICALLY INDICATED, AND TO ENSURE THE SAFETY AND SECURITY
18 OF THE FACILITY.

19 3. ALLOW THE ARIZONA STATE HOSPITAL TO ISSUE A STANDING ORDER FOR
20 THE APPLICATION OF RESTRAINTS TO THE DEFENDANT AS NECESSARY TO ENSURE THE
21 SAFETY AND SECURITY OF THE FACILITY.

22 C. IF THE MEDICAL DIRECTOR DETERMINES THAT A DEFENDANT WHO WAS
23 DETERMINED TO BE DANGEROUS, INCOMPETENT AND NONRESTORABLE PURSUANT TO
24 SECTION 13-4521 MAY NO LONGER BE DANGEROUS OR INCOMPETENT, THE DISPOSITION
25 OF THE PROCEEDINGS SHALL BE PURSUANT TO TITLE 36, CHAPTER 40.

26 D. AS SOON AS PRACTICABLE, ON THE LICENSURE OF A SECURE STATE
27 MENTAL HEALTH FACILITY FOR THE CARE AND TREATMENT OF DEFENDANTS WHO ARE
28 COMMITTED UNDER SECTION 13-4521, THE ARIZONA STATE HOSPITAL SHALL
29 COORDINATE THE TRANSFER OF ANY DEFENDANT WHO IS ADMITTED TO THE ARIZONA
30 STATE HOSPITAL PURSUANT TO THIS SECTION TO THE SECURE STATE MENTAL HEALTH
31 FACILITY.

32 E. THE ORIGINATING COUNTY FROM WHICH A DEFENDANT IS DETERMINED TO
33 BE DANGEROUS, INCOMPETENT AND NONRESTORABLE AND SUBSEQUENTLY ADMITTED TO
34 THE ARIZONA STATE HOSPITAL PURSUANT TO THIS SECTION SHALL REIMBURSE THE
35 DEPARTMENT OF HEALTH SERVICES FOR ONE HUNDRED PERCENT OF THE COSTS FOR ANY
36 NONPSYCHIATRIC OR NONMENTAL HEALTH DISORDER-RELATED SERVICES PROVIDED TO
37 THE DEFENDANT DURING THE DEFENDANT'S ADMISSION, INCLUDING:

38 1. PHYSICAL HEALTH CARE SERVICES.

39 2. SERVICES TO TREAT CO-OCCURRING AND COMORBID MEDICAL CONDITIONS.

40 3. SERVICES TO TREAT DIAGNOSED NEUROCOGNITIVE DISORDERS.

41 4. SERVICES TO TREAT DIAGNOSED NEURODEVELOPMENTAL DISORDERS.

42 F. THE ARIZONA STATE HOSPITAL MAY NOT ACCEPT MORE THAN THREE
43 DEFENDANTS WHO HAVE A PRIMARY PSYCHIATRIC CONDITION AND WHO HAVE BEEN
44 DETERMINED TO BE DANGEROUS, INCOMPETENT AND NONRESTORABLE PURSUANT TO
45 SECTION 13-4521 FOR CARE AND TREATMENT ON ITS FORENSIC CAMPUS. IF THE

1 ARIZONA STATE HOSPITAL REACHES, OR IS EXPECTED TO REACH, THE MAXIMUM
2 FUNDED CAPACITY FOR FORENSIC PROGRAMS, THE SUPERINTENDENT SHALL INFORM ALL
3 COUNTIES THAT THE ARIZONA STATE HOSPITAL MAY NOT ACCEPT ANY ADDITIONAL
4 DEFENDANTS PURSUANT TO SECTION 13-502, 13-3992 OR 13-4521 OR THIS SECTION
5 AND THE FOLLOWING APPLY:

6 1. NOTWITHSTANDING SECTION 13-3992, SUBSECTION E, THE DEPARTMENT OF
7 HEALTH SERVICES MAY REIMBURSE A COUNTY FOR THE ACTUAL COSTS OF EACH DAY AN
8 ADMISSION IS DEFERRED FOR A PERSON WHO HAS BEEN FOUND GUILTY EXCEPT INSANE
9 PURSUANT TO SECTION 13-502.

10 2. NEITHER THE DEPARTMENT OF HEALTH SERVICES OR ITS OFFICERS ARE
11 LIABLE FOR OR SUBJECT TO CIVIL SANCTIONS AS A RESULT OF THE ARIZONA STATE
12 HOSPITAL'S INABILITY TO ADMIT DEFENDANTS DUE TO REACHING THE MAXIMUM
13 FUNDED CAPACITY.

14 G. BEGINNING OCTOBER 1, 2026 AND EVERY SIX MONTHS THEREAFTER, THE
15 ADMINISTRATIVE OFFICE OF THE COURTS SHALL REPORT TO THE SPEAKER OF THE
16 HOUSE OF REPRESENTATIVES, THE PRESIDENT OF THE SENATE, THE GOVERNOR AND
17 THE DIRECTOR OF THE DEPARTMENT OF HEALTH SERVICES ALL OF THE FOLLOWING:

18 1. THE NUMBER OF DEFENDANTS WHO WERE DETERMINED TO BE INCOMPETENT
19 TO STAND TRIAL AND NONRESTORABLE.

20 2. THE NUMBER OF TRIALS INITIATED TO DETERMINE IF A DEFENDANT IS
21 DANGEROUS PURSUANT TO THIS SECTION.

22 3. THE NUMBER OF DEFENDANTS WHO WERE DETERMINED TO BE DANGEROUS
23 PURSUANT TO THIS SECTION.

24 4. THE NUMBER OF DEFENDANTS WHO WERE DETERMINED TO BE EITHER
25 INCOMPETENT TO STAND TRIAL AND NONRESTORABLE OR INCOMPETENT, NONRESTORABLE
26 AND DANGEROUS AND WHO WERE DIAGNOSED WITH A NEUROCOGNITIVE OR
27 NEURODEVELOPMENTAL DISORDER, INCLUDING A TRAUMATIC BRAIN INJURY, DEMENTIA
28 OR AUTISM.]]>>

29 <<Sec. 3. Delayed repeal

30 [Section 13-4521.01, Arizona Revised Statutes, as added by this act,

31 is repealed from and after December 31, 2031.]]>>

32 <<Sec. 4. Legislative study committee on secure state mental

33 health facilities; membership; powers and duties;

34 delayed repeal; definition

35 [A. The legislative study committee on secure state mental health

36 facilities is established consisting of the following members:

37 1. Three members of the senate who are appointed by the president
38 of the senate, not more than two of whom are members of the same political
39 party.

40 2. Three members of the house of representatives who are appointed
41 by the speaker of the house of representatives, not more than two of whom
42 are members of the same political party.

43 3. The director of the Arizona health care cost containment system
44 or the director's designee.

1 4. The superintendent of the Arizona state hospital or the
2 superintendent's designee.

3 5. The attorney general or a member of the attorney general's staff
4 who has experience in civil commitment procedures under title 36, Arizona
5 Revised Statutes, and commitment procedures under title 13, Arizona
6 Revised Statutes.

7 6. One member who is from a county attorney's office in a county
8 with a population of at least one million five hundred thousand persons
9 and who is appointed by the speaker of the house of representatives.

10 7. One member who is from a county attorney's office in a county
11 with a population of less than one million five hundred thousand persons
12 and who is appointed by the president of the senate.

13 8. At least two private sector providers who each have experience
14 in operating behavioral health facilities, one of whom is appointed by the
15 speaker of the house of representatives and one of whom is appointed by
16 the president of the senate

17 9. One member who is a public defender in a county with a
18 population of at least one million five hundred thousand persons and who
19 is appointed by the president of the senate.

20 10. One member who is a public defender in a county with a
21 population of less than one million five hundred thousand persons and who
22 is appointed by the speaker of the house of representatives.

23 11. One member who is from the administrative office of the courts.

24 12. One member who is from a nonprofit federally mandated
25 protection and advocacy agency for this state and who is appointed by the
26 president of the senate.

27 B. The committee shall make recommendations on the long-term
28 feasibility of secure state mental health facilities or other care models,
29 and shall:

30 1. Identify sustainable funding by analyzing and recommending
31 long-term funding sources for persons who are determined to be dangerous,
32 incompetent and nonrestorable pursuant to section 13-4521, Arizona Revised
33 Statutes, as amended by this act, including the feasibility of state
34 general funded, county-funded and federal medicaid reimbursement models.

35 2. Determine the appropriate per diem rates that are required to
36 incentivize private providers to build and operate secure state mental
37 health facilities, including accounting for specialized security and
38 high-acuity clinical staffing.

39 3. Evaluate the feasibility of privately operated secure state
40 mental health facilities versus separate and specialized secure state
41 mental health facilities operated directly by the Arizona state hospital.

42 4. Research if commitments of defendants who have been determined
43 to be dangerous, incompetent and nonrestorable pursuant to section
44 13-4521, Arizona Revised Statutes, as amended by this act, remains the
45 most appropriate legal pathway and if a modified civil commitment process

1 under title 36, Arizona Revised Statutes, provides better clinical
2 outcomes and federal funding eligibility.

3 5. Review the literature and data from this state and other
4 jurisdictions to project the growth over the next ten years of the
5 population of defendants who have been determined to be dangerous,
6 incompetent and nonrestorable pursuant to section 13-4521, Arizona Revised
7 Statutes, as amended by this act.

8 6. Evaluate the costs and logistics associated with entering into
9 an interstate compact or multistate agreement to establish an out of state
10 placement for a defendant who has been determined to be dangerous,
11 incompetent and nonrestorable pursuant to section 13-4521, Arizona Revised
12 Statutes, as amended by this act, if a bed in a secure state mental health
13 facility in this state is unavailable.

14 C. The committee may hold hearings, conduct site visits to existing
15 secure facilities and request data from the department of health services,
16 the Arizona health care cost containment system and the administrative
17 office of the courts.

18 D. Committee members are not eligible to receive compensation but
19 are eligible for reimbursement of expenses pursuant to title 38, chapter
20 4, article 2, Arizona Revised Statutes.

21 E. On or before December 31, 2026, the committee shall submit a
22 report of its findings and recommendations to the governor, the president
23 of the senate and the speaker of the house of representatives and provide
24 a copy of this report to the secretary of state.

25 F. This section is repealed from and after December 31, 2026.

26 G. For the purposes of this section, "secure state mental health
27 facility" has the same meaning prescribed in section 13-4501, Arizona
28 Revised Statutes.]]>>

29 <<Sec. 5. Department of health services; analysis; secure
30 state mental health facilities

31 [A. The department of health services shall conduct an analysis of
32 the cost to staff and construct a new secure state mental health facility
33 on the grounds of the Arizona state hospital or renovate an existing
34 structure to be converted to a secure state mental health facility on the
35 grounds of the Arizona state hospital for defendant who are determined to
36 be dangerous, incompetent and nonrestorable pursuant to section 13-4521,
37 Arizona Revised Statutes, as amended by this act.

38 B. On or before November 1, 2026, the department shall submit the
39 analysis to the president of the senate, the speaker of the house of
40 representatives and the governor and provide a copy of this analysis to
41 the secretary of state.]]>>

42 <<Sec. 6. Applicability

43 [Section 13-4521, Arizona Revised Statutes, as amended by this act,
44 and section 13-4521.01, Arizona Revised Statutes, as added by this act,
45 apply retroactively to from and after December 31, 2023.]]>>

1 ~~[(ENACTED WITHOUT THE EMERGENCY)~~
2 ~~Sec. 7. Emergency~~
3 ~~This act is an emergency measure that is necessary to preserve the~~
4 ~~public peace, health or safety and is operative immediately as provided by~~
5 ~~law.]~~
6 <<Sec. 7. Emergency
7 [This act is an emergency measure that is necessary to preserve the
8 public peace, health or safety and is operative immediately as provided by
9 law.]]>>

10 Enroll and engross to conform
11 Amend title to conform

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